

70. Prohibition of undue preference.- A railway administration shall not make or give any undue or unreasonable preference or advantage to , or in favour of, any particular person or any particular description of traffic in the carriage of goods.

COMMENT

Section 70 prohibits a railway administration from giving undue or unreasonable preference in favour of any particular person or traffic.

71. Power to give direction in regard to carriage of certain goods.- (1) The Central Government may, if it is of the opinion that it is necessary in the public interest so to do, by general or special order, direct any railway administration.-

- (a) to give special facilities for, or preference to, the carriage of such goods or class of goods consigned by or to the Central Government of any State or of such other goods or class of goods;
- (b) to carry any goods or class of goods by such route or routes and at such rates;
- (c) to restrict or refuse acceptance of such goods or class of goods at or to such station for carriage,

as may be specified in the order.

(2) Any order made under sub-section (1) shall cease to have effect after the expiration of a period of one year from the date of such order, but may, by a like order, be renewed from time to time for such period not exceeding one year at a time as may be specified in the order.

(3) Notwithstanding anything contained in this Act, every railway administration shall be bound to comply with any order given under sub-section (1) and any action taken by a railway administration in pursuance of any such order shall not be deemed to be a contravention of Sec. 70.

COMMENT

Section 71, sub-clause (1) empowers the Central Government to give directions to the railway administration with regard to –

- (a) Special facilities for the carriage of goods consigned by to the Central Government or the State Government or any other goods;
- (b) The route or the rate at which any goods may be carried; and